

Empire Flag
Eternal Sovereignty



Emperor's Seal
Sidi Mohammed III · 1786



Great Seal (Reverse)
United States · Grantee



Celestial Seal
Articles 20–25

EMPIRE OF MOROCCO

Ab Antiquo • Maghrib Al-Aqṣā • North Gate

1786 Mālikī Sharia Hiba (Sovereign Unilateral Grant) · Recorded at 8 Stat. 100 · Re-recorded at 8 Stat. 484 (1836)

INTERNATIONAL DOCUMENT · Chapter 4 ʻALĀMA (MARK OF RECOGNITION) · GRANT INSTRUMENT

NI-IJAZAH-CANDIDATE

IJĀZAH OF THE NATIONALITY INSTRUMENT

Competency Examination · Phase 1A & 1B

Examination Paper — Questions Only

Five Sections · 134 Questions + Section III Capstone · Pass Threshold 85% Total + Section Minimums · Zero Absolute Disqualifiers

Issuing Authority

Office of the Consular Economic Attaché, Empire of Morocco
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Examination Paper QP-2 · 2026-09-21 — the questions-only paper produced under the document's own declared split: Development Draft v6.2 (2026-09-21), the Corridor Edition, provides on its face that “upon QA approval, this content will be split into the NI-Ijazah Examination Paper (questions only) and the NI-Ijazah Answer Key (instructor copy, three-band structure).” This is that Examination Paper. The question text is carried verbatim from v6.2 (134 questions and the Section III capstone), including Subsection F — the office corridor, Chapters 20–24 (Q86A–Q86H); the annotated Answer Key is the instructor copy — withheld of record, never published. Draft v6.2 is retained, frozen, of record; Draft v6.1 and Examination Paper QP-1 (2026-09-12) are superseded and retained frozen of record. Seat of record: tribunal.empireofmorocco.org.

Section Inventory and Calibration

Section	Subject of record	Questions	Weight	Section minimum
I	The Three Locks — irrevocability, non-invertibility, non-contingency	25	30%	90%
II	The 1786 Hiba and the 1836 Ministerial Recordation	32	22%	75%
III	Trust / Beneficiary Architecture and Public-Character Recognition	37	18%	75%
IV	Chapter 4 ʻAlāma and Operational Recognition	28	15%	75%
V	Rules of Construction — Twelve Maxims Adverse to the Grantee	12	15%	75%

Pass Threshold: 85% total + section minimums + zero absolute disqualifiers. The examination is free to take. The annotated Answer Key is the instructor copy and is not published; scoring is administered by the office of record.

SECTION I

The Three Locks — Irrevocability, Non-Invertibility, Non-Contingency

SUBSECTION A — IRREVOCABILITY (LOCK 1)

Questions 1–9. Tests the affiant's grasp that the 1786 hiba, once made tāmm by qabḍ, cannot be revoked by any subsequent event or mechanism — including passage of time, grantee breach, or grantee legislation.

Q1. (Multiple Choice) Under Volume L's framework, the 1786 Mālikī Hiba became tāmm (complete) when:

A) The U.S. Senate ratified the 1836 codification in 1837.
B) Sīdī Muḥammad III sealed the instrument on 23 June 1786.
C) U.S. Agent Thomas Barclay received the sealed instrument on 28 June 1786 (qabḍ).
D) President Washington wrote his letter to the Emperor in 1789.

Q2. (Multiple Choice) Once a hiba is tāmm, who has authority to revoke it under classical Mālikī doctrine?

A) The donor only.
B) The donee only.
C) Both donor and donee acting jointly.
D) No one — tāmm makes the hiba irrevocable.

Q3. (Multiple Choice) U.S. State Department Treaty Editor Hunter Miller (1931) characterized the 1836 instrument as:

A) A new treaty replacing the 1786 grant.
B) In substance and almost literally a renewal of the 1786 treaty with Morocco.
C) An instrument that terminated the 1786 grant.
D) An instrument unrelated to the 1786 grant.

Q4. (Multiple Choice) The 1836 English text contains a 12-month termination clause. The 1786 Arabic original:

A) Contains the same termination clause.
B) Contains a different termination clause.
C) Contains no termination clause; expresses permanence.
D) Cannot be located today.

Q5. (Multiple Choice) Which of the following is NOT capable of revoking the 1786 hiba after tāmm?

A) The passage of time.
B) Breach by the grantee.
C) Subsequent legislation by the grantee.
D) None of the above can revoke it.

Q6. (Short Answer) Explain in your own words why the passage of time alone cannot revoke the 1786 hiba. (1–3 sentences.)

Q7. (Short Answer) Identify the three constitutive elements of hiba under Volume L's framework, the date the 1786 hiba became tāmm, and the recipient at qabḍ. (2 sentences.)

Q8. (Doctrinal Reasoning) A federal officer says: 'Even if the 1786 instrument was a grant, the United States stopped following it long ago. After two centuries of non-performance, the grant has lapsed.' Apply Lock 1 to refute this argument. (3–5 sentences.)

Q9. (Doctrinal Reasoning) A scholar argues: 'The 1836 codification superseded the 1786 grant. After 1836, only the 1836 English text controls.' Apply Lock 1 to refute this. Cite at least one period authority. (3–5 sentences.)

SUBSECTION B — NON-INVERTIBILITY (LOCK 2)

Questions 10–17. Tests the affiant's grasp that the donor-donee (host-grantor / guest-grantee) relationship is structurally fixed and cannot be inverted by administrative practice, however prolonged.

Q10. (Multiple Choice) In the 1786 Mālikī Hiba, the host-grantor is:
A) The United States of America.
B) The Empire of Morocco.
C) The Kingdom of Morocco.
D) Both parties equally.

Q11. (Multiple Choice) In the 1786 hiba, the guest-grantee is:
A) The United States of North America.
B) The Empire of Morocco.
C) The Moorish Subjects.
D) Sīdī Muḥammad III personally.

Q12. (Multiple Choice) Under Volume L's framework, the donor-donee relationship is fixed:
A) At tāmm — the moment all three constitutive elements have occurred.
B) When the donee's legislature ratifies the instrument.
C) Whenever either party wishes to change it.
D) Only after both parties confirm the relationship in writing.

Q13. (Multiple Choice) Why does Volume L distinguish hiba from ʿaqd (bilateral contract)?
A) Because hiba and ʿaqd require the same elements.
B) Because hiba is unilateral while ʿaqd is bilateral, and a single instrument cannot be both.
C) Because hiba can become ʿaqd if both parties agree later.
D) Because the distinction has no practical consequences.

Q14. (Multiple Choice) U.S. Agent Thomas Barclay reported in 1786 that the instrument:
A) Was bilateral and signed by both parties.
B) Was 'not in the form expected' — bearing only the Emperor's seal.
C) Had been signed by the Emperor and an American official.
D) Was a draft for further negotiation.

Q15. (Short Answer) Define non-invertibility, in the context of the 1786 hiba, in your own words. (1–3 sentences.)

Q16. (Short Answer) Volume J describes 'six steps' by which the United States attempted inversion. Did these attempts succeed in inverting the relationship? Explain briefly. (2–3 sentences.)

Q17. (Doctrinal Reasoning) A government attorney argues: 'Through 240 years of administering the treaty, the United States has effectively become the senior party. The original allocation of donor and donee is a historical artifact and no longer reflects reality.' Apply Lock 2 to refute this. (3–5 sentences.)

SUBSECTION C — NON-CONTINGENCY (LOCK 3)

Questions 18–25. Tests the affiant's grasp that the grant's existence is independent of belief, acknowledgment, or recognition by any third party.

Q18. (Multiple Choice) The 1786 hiba's existence depends on:

A) The affiant's belief in it.
B) The trustee's acknowledgment of it.
C) The Kingdom of Morocco's recognition of it.
D) None of the above — the grant exists because the donor performed it and the act became tāmm.

Q19. (Multiple Choice) If a federal officer states that the 1786 hiba 'does not exist,' the legal effect on the grant is:

A) The hiba is suspended until the officer acknowledges it.
B) The hiba is unaffected; the officer's statement is irrelevant to the grant's existence.
C) The grant's force depends on the officer's review.
D) The officer's statement creates a legal presumption against the hiba.

Q20. (Multiple Choice) The donor's authority in the period authority stack flows:

A) Downstream from the donee's recognition.
B) Upstream — from the act of granting itself.
C) Equally from both donor and donee.
D) From international consensus.

Q21. (Multiple Choice) The maxim 'Quod factum est, factum est' means:

A) What is granted must be acknowledged.
B) What is done, is done.
C) Time changes all grants.
D) Recognition perfects the grant.

Q22. (Multiple Choice) The Empire of Morocco is the sovereign that:

A) Was established in 1956 from the French Protectorate.
B) Sealed and delivered the 1786 hiba and remains in force under Mālikī doctrine.
C) Is currently the operational government of the modern state.
D) Was extinguished in 1956 by the Kingdom's establishment.

Q23. (Short Answer) Distinguish the Empire of Morocco from the Kingdom of Morocco. (2 sentences.)

Q24. (Short Answer) Why does seeking recognition from the trustee or any third party undermine the doctrine? (2–3 sentences.)

Q25. (Doctrinal Reasoning) A border officer at a U.S. port states: 'I do not recognize your nationality declaration. As far as I am concerned, you are a domestic citizen.' Apply Lock 3 to compose a response in your internal reasoning (not necessarily what you say aloud). Reference at least one operative maxim or authority. (3–5 sentences.)

SECTION II

The 1786 Hiba and the 1836 Ministerial Recordation

SUBSECTION A — STRUCTURAL IDENTIFICATION

Questions 26–32. Tests the affiant's grasp of the 1786 instrument's identity, the 1836 ministerial recordation's character, and the Arabic Text Primacy doctrine.

Q26. (Multiple Choice) The 1786 instrument was sealed by:

A) Sīdī Muḥammad III, Sultan of the Empire of Morocco.
B) Mawlay Sulaymān.
C) The current King of the Kingdom of Morocco.
D) A Moroccan provincial governor.

Q27. (Multiple Choice) Where was the 1786 instrument sealed?

A) Tangier.
B) Marrakesh.
C) Fez.
D) Rabat.

Q28. (Multiple Choice) The original 1786 instrument is in:

A) English.
B) French.
C) Arabic.
D) Both Arabic and English with equal authority.

Q29. (Multiple Choice) The 1836 instrument is, in relation to the 1786 grant:

A) A replacement that supersedes the 1786 grant.
B) A ministerial recordation by the United States, confirming the existence of the 1786 grant in the U.S. statutory record without altering its unilateral character.
C) An entirely independent treaty unrelated to 1786.
D) A termination of the 1786 grant.

Q30. (Multiple Choice) Where the 1786 Arabic original and the 1836 English text diverge, the controlling text is:

A) The 1836 English text, because it is more recent.
B) The 1786 Arabic original.
C) Whichever party prefers in the moment.
D) Whichever interpretation the U.S. courts adopt.

Q31. (Short Answer) Identify the date the 1786 instrument was sealed, the date it was delivered, and the U.S. agent who received it. (1–2 sentences.)

Q32. (Short Answer) What does it mean to say that the 1836 instrument is a 'codification' of the 1786 grant rather than a replacement? (2–3 sentences.)

SUBSECTION B — TWELVE U.S. ADMISSIONS CHAIN — ESTOPPEL BY ADMISSION

Questions 33–47. Tests the affiant's grasp of the United States' twelve admissions across 229

years (1785–2014) that the 1786 instrument is a unilateral sovereign grant. Admissions 1–5 (Q33–Q40) cover the foundational chain: Barclay (1786), Jefferson/Adams (1787), Washington (1789), Leib (1836), Miller (1931). Admissions 6–12 (Q41–Q47) cover the expanded chain: First Barbary War conduct (1802–1805), Jackson instructions (1835), Senate ratification + Presidential proclamation (1837), State Department retention of Hurgronje (pre-1931), ICJ Rights of Nationals (1952), Treaties in Force continuous (1953–2025), and Library of Congress certified reproduction (2014). The chain creates continuous, cross-branch, hierarchical estoppel.

Q33. (Multiple Choice) U.S. Agent Thomas Barclay reported in 1786 that the instrument:

A) Was a standard bilateral treaty signed by both parties.
B) Was 'not in the form expected,' bearing only the Emperor's seal.
C) Required further negotiation before it could take effect.
D) Was a draft awaiting U.S. signature.

Q34. (Multiple Choice) Jefferson and Adams, in their joint 1787 letter, characterized the 1786 instrument as:

A) A treaty between equal sovereign powers.
B) A grant of friendship and protection by the Emperor.
C) A commercial contract for trade.
D) An informal understanding without legal force.

Q35. (Multiple Choice) George Washington's 1789 letter to the Emperor is doctrinally significant because: posture.

A) It claims the U.S. drafted the treaty.
B) It asks the Emperor to renegotiate the terms.
C) It thanks the Emperor for his unilateral grant of friendship — an acknowledgment of grantee
D) It declares the instrument terminated.

Q36. (Multiple Choice) Consul James R. Leib, in 1836, characterized the 1786 instrument as:

A) An expired commercial treaty.
B) Bearing the form of a grant; signing his name to it would be 'out of rule.'
C) A bilateral instrument requiring fresh ratification.
D) A draft that had never become operative.

Q37. (Multiple Choice) Hunter Miller's 1931 editorial finding characterized the 1836 instrument as:

A) A new treaty replacing the 1786 grant.
B) In substance and almost literally a renewal of the 1786 treaty.
C) An act of unilateral U.S. legislation.
D) A unilateral grant by the United States.

Q38. (Short Answer) Name the five admissions carried in detail in the Twelve U.S. Admissions Chain in chronological order, identifying the U.S. official and the year of each. (3–4 sentences.)

Q39. (Short Answer) What is the legal effect of the U.S. Admissions Chain on the United States' ability to characterize the 1786/1836 relationship today? (2–3 sentences.)

Q40. (Doctrinal Reasoning) A government attorney argues: 'The Twelve U.S. Admissions are dicta from various U.S. officials over 229 years. None of them is binding on the United States today. Each was made in a different context and none controls current treaty interpretation.' Refute this argument. (3–5 sentences.)

Q41. (Multiple Choice) During the First Barbary War (1802–1805) and its diplomatic settlement, the U.S. response to Mawlay Sulayman's 1802 declaration:

A) Treated the 1786 grant as having lapsed and required renegotiation.

B) Treated the underlying 1786 grant as still operative; acted to restore the status quo ante under the existing grant.

C) Created an entirely new bilateral treaty replacing the 1786 instrument.

D) Asserted the 1786 grant had been substantively modified by the 1802 events.

Q42. (Multiple Choice) President Andrew Jackson's August 10, 1835 instructions to U.S. Consul James R. Leib (D.S. 14 Instructions, Barbary Powers, 5–7) directed Leib to:

A) Negotiate a new commercial treaty with the Sultan.

B) Obtain 'a renewal of the old treaty exactly as it stands.'

C) Declare the 1786 treaty terminated.

D) Convert the unilateral grant into a bilateral instrument.

Q43. (Multiple Choice) The U.S. Senate's Resolution of Advice and Consent (January 17, 1837) and President Jackson's Proclamation (January 30, 1837) adopting the 1836 instrument:

A) Characterized the instrument as a bilateral treaty between equals.

B) Formally adopted an instrument the U.S. Consul himself had characterized as 'bearing the form of a grant' (Leib Despatch No. 39, 11 October 1836).

C) Created the grant character of the instrument for the first time.

D) Modified the substantive terms of the 1786 hiba.

Q44. (Multiple Choice) The U.S. State Department's retention of Dr. C. Snouck Hurgronje (Dutch Orientalist) to translate and analyze the 1786 Arabic original is an admission that:

A) The English translation is the controlling text.

B) The Arabic is the controlling text, and the U.S. lacked internal capacity to interpret the instrument without recourse to a specialist in the grantor's legal and linguistic tradition.

C) The 1786 instrument is no longer relevant.

D) The State Department had no view on which text controls.

Q45. (Multiple Choice) In Rights of Nationals of the United States of America in Morocco (France v. United States), I.C.J. Reports 1952, p. 176, the United States argued before the International Court of Justice that:

A) The 1786/1836 instrument had lapsed and was no longer binding.

B) The 1786/1836 instrument remained binding and U.S. nationals retained rights under it.

C) The instrument was a domestic U.S. matter outside ICJ jurisdiction.

D) The Empire of Morocco had renounced the grant.

Q46. (Multiple Choice) The U.S. Department of State's continuous listing of the 1786/1836 instrument in Treaties in Force from publication to the 2025 edition (Morocco · Peace, p. 301) operates as:

A) Optional administrative practice with no estoppel effect.

B) Continuous administrative admission that the instrument is on the records as in force; each annual edition is a fresh State Department admission.

C) An act of Congress modifying the instrument.

D) A reservation of the U.S.'s right to terminate.

Q47. (Multiple Choice) The Library of Congress certified reproduction of 8 Stat. 484 issued on September 4, 2014 (signed by Gregory T. Cooper, Section Head, Office of Business Enterprises) operates as:

A) A private commercial transaction with no institutional significance.

B) A federal institutional act affirmatively attesting that the instrument exists, is on the federal record, and is producible from federal custody.

C) An informal historical reference.

D) A new enactment of the 1836 instrument.

SUBSECTION C — EDITORIAL-PATTERN RECOGNITION

Questions 48–53. Tests the affiant's recognition of the cumulative softening pattern across multiple articles where the 1836 recordation departs from the 1786 Arabic original — each departure a divergence or addition. Doctrinal upgrade: the English text carries no sovereignty and does not interpret the grant; the divergences are evidence of grantee bad faith in record curation, operating as the basis for spoliation presumptions and trustee-breach analysis.

Q48. (Multiple Choice) Chapter 21 of the 1786 Arabic provides for adjudication under:

A) U.S. domestic law.

B) Sacred Law (Sharīʿah), with the consul present.

C) International commercial arbitration.

D) Whichever law the disputing parties prefer.

Q49. (Multiple Choice) Chapter 12 of the 1836 English text uses 'slaves' where the 1786 Arabic uses:

A) 'Citizens.'

B) 'Fugitive prisoners' (a distinct juridical category).

C) 'Travelers.'

D) 'Soldiers.'

Q50. (Multiple Choice) The 12-month termination clause of the 1836 recordation, Article 25:

A) Is also present in the 1786 Arabic.

B) Validly limits the hiba because the 1836 Arabic carries it.

C) Is absent from the 1786 instruments; first appears in the 1836 recordation — the 1836 Arabic itself, Article 25 (Miller, vol. 4, print p. 59) — and is void as repugnant to the perfected hiba.

D) Was added by the Empire of Morocco in 1836.

Q51. (Multiple Choice) When the editorial departures — divergence or addition — across Articles 12, 16, 18, 21, and 25 are considered together, the pattern shows:

A) Random translation errors with no consistent direction.

B) A consistent direction: each departure reduces grantor authority, expands grantee discretion, or weakens beneficiary protection.

C) Improvements that strengthen the original Arabic text.

D) Translation choices made by the Empire of Morocco.

Q52. (Short Answer) Identify three points where the 1836 recordation departs from the 1786 Arabic original, and briefly state the nature of each departure. (3–5 sentences.)

Q53. (Doctrinal Reasoning) A scholar argues: 'The 1836 English text was the work of professional translators acting in good faith. Where it diverges from the Arabic, those are translation choices, not deliberate alterations. The pattern argument is overreach.' Refute this argument. (3–5 sentences.)

SUBSECTION D — CAPSTONE

Questions 54–57. Section II capstone — integrating structural identification, the twelve-admission chain, and editorial-pattern recognition into operational doctrinal reasoning.

Q54. (Multiple Choice) Under classical Mālikī doctrine, perpetuity in hiba is:

A) A contingent feature parties may negotiate away.

B) Intrinsic to the category — not negotiable.

C) A modern innovation not present in the classical sources.

D) Available only for hiba between relatives.

Q55. (Multiple Choice) The Mālikī rule 'al-sharṭu bāṭil wa al-hibatu ṣaḥīḥa' means:

A) The condition is valid; the gift is void.

B) The condition is void; the gift is valid.

C) The condition and the gift both fail.

D) The condition modifies the gift.

Q56. (Short Answer) Explain the 1786 Arabic's own duration word 'dā’ima' ('trusting in God it will remain permanent') and how it applies to the 1786 hiba. (1–2 sentences.)

Q57. (Doctrinal Reasoning) Apply the Mālikī repugnancy doctrine to the 12-month termination clause carried in the 1836 recordation, Article 25. (3–5 sentences.)

SECTION III

Trust / Beneficiary Architecture and Public-Character Recognition

Q58. (Multiple Choice) Sīdī Muḥammad III sealed the 1786 instrument in his capacity as:

A) A private merchant.

B) A provincial governor.

C) Amīr al-Muʾminīn (Commander of the Faithful) and Sultan of the Empire of Morocco.

D) A representative of a foreign power.

Q59. (Multiple Choice) Under Chapter 21 of the 1786 Arabic, a mixed matter — a citizen of the United States killing or wounding a Moor, or the contrary — is adjudicated:

A) The United States consul, to whom the article delegates adjudicative authority.

B) The Empire's Sacred-Law tribunal — judgment by the Sacred Law, without increase or decrease — the consul present and assisting.

C) The domestic courts of the United States, applying ordinary municipal law.

D) A mixed commission of the two nations, sitting together.

Q60. (Multiple Choice) If the 1786 instrument were a private grant, the United States could:

A) Sell the rights it conveys to France or Britain.

B) Assign the rights to a private citizen.

C) Both A and B.

D) None of these — sovereign grants cannot be alienated by the donee.

Q61. (Multiple Choice) The 1786 grant conveys, among other things, hereditary estate protection (Chapter 22) for Moorish Subjects. This conveyance: system.

A) Is a routine commercial term.

B) Could have been granted by any private party.

C) Requires sovereign authority because it imposes obligations on the U.S. courts and probate

D) Does not constitute a sovereign act.

Q62. (Short Answer) Identify two articles of the 1786 instrument whose subject matter could only be granted by a sovereign acting as such, and explain why each requires sovereign capacity. (3–4 sentences.)

Q63. (Doctrinal Reasoning) An opponent argues: 'The 1786 instrument is a private grant — Sīdī Muḥammad III gave certain rights to the United States; that is what private parties do every day. The sovereign-grant framing is overreach.' Refute this argument using the capacity test. (3–5 sentences.)

Q64. (Multiple Choice) The corpus of the trust under the 1786 hiba consists of: free passage, MFN footing, consular jurisdiction, perpetual peace.

A) Land in Morocco.

B) Money paid by the U.S. to the Empire.

C) The treaty articles themselves and the rights they convey — nationality, name, hereditary estate,

D) Religious texts.

Q65. (Multiple Choice) Incorporeal rights — rights that cannot be physically touched, like jurisdictional authority — :

A) Cannot be the subject of a grant under classical doctrine.

B) Can be the subject of a grant only if reduced to writing in English.

C) Have been recognized as valid subjects of grants in classical jurisprudence.

D) Were unknown to 18th-century law.

Q66. (Multiple Choice) Chapter 24's 'or otherwise' clause functions as:

A) A drafting error.

B) An anti-limitation provision that prevents the corpus from being narrowed to enumerated items.

C) A modern insertion.

D) A geographic limitation.

Q67. (Short Answer) Why is it doctrinally significant that the corpus consists of the articles themselves rather than tangible property? (2–3 sentences.)

Q68. (Short Answer) Name three rights that constitute parcels of the trust corpus and identify the article(s) of the 1786 instrument that convey them. (2–3 sentences.)

Q69. (Doctrinal Reasoning) A federal officer argues: 'The 1786 treaty's articles are old commercial provisions that have long been overtaken by modern statutes. Whatever rights they once created have been absorbed into U.S. immigration, customs, and probate law.' Refute this argument. (3–5 sentences.)

Q70. (Multiple Choice) The primary beneficiaries of the 1786 hiba are:

A) United States citizens.

B) Moorish Subjects — subjects of the Empire of Morocco.

C) European diplomats.

D) The U.S. State Department.

Q71. (Multiple Choice) Under the 1786 grant, beneficiaries are identified by: maritime blue pendant).

A) U.S. domestic racial categories.

B) The Chapter 4 ʿalāma — the markers established by the grant itself (El, Al, Bey, Dey, Ali, and the

C) Self-declaration without any framework.

D) The U.S. State Department's discretion.

Q72. (Multiple Choice) If the U.S. classifies a beneficiary under a domestic racial category (e.g., Negro, Black, African American), the legal effect on the beneficiary's status under the 1786 grant is: taxonomy.

A) The classification overrides the grant; the person loses beneficiary status.

B) The classification has no effect on the underlying grant; beneficiary status is upstream of domestic

C) The beneficiary must accept the classification.

D) Beneficiary status is suspended pending administrative review.

Q73. (Short Answer) Define the Chapter 4 ʿalāma in your own words. (1–2 sentences.)

Q74. (Short Answer) Explain why the trustee cannot lawfully substitute its own classification system for the grant's ʿalāma markers. (2–3 sentences.)

Q75. (Doctrinal Reasoning) A federal court holds: 'For purposes of this proceeding, the affiant is classified as a U.S. citizen of African descent. Whatever the affiant claims under the 1786 treaty, that classification controls before this court.' Apply Lock 3 + the Constitutional Fold doctrine to refute this holding. (3–5 sentences.)

Q76. (Multiple Choice) Under the trustee subordination doctrine, the United States as trustee of the 1786 grant must administer it according to:

A) U.S. domestic preferences.
B) International commercial standards.
C) The grantor's law (Mālikī sharia, the legal framework under which the grant was made).
D) Whatever law the trustee chooses.

Q77. (Multiple Choice) Drew Ali's 'constitutional fold of government' doctrine establishes that: Mālikī grant; the grant's law controls on conflicts.

A) The U.S. Constitution operates above all other legal frameworks.
B) The U.S. Constitution operates inside the trustee's franchise; the franchise operates inside the
C) There is no relationship between the Constitution and the 1786 grant.
D) The U.S. Constitution supersedes all treaties.

Q78. (Multiple Choice) Volume L's Sixth Ground of Legal Impossibility holds that:

A) The grantor cannot alter the grant after tāmm.
B) The grantee/donee cannot alter the grant.
C) Either party can alter the grant by mutual agreement.
D) Time alters the grant automatically.

Q79. (Multiple Choice) The three trustee disabilities flowing from the Constitutional Fold are: (3) cannot substitute domestic discretion for the Chapter 4 ʿalāma.

A) (1) cannot impose domestic racial classifications, (2) cannot override Mālikī inheritance/descent,
B) (1) cannot tax beneficiaries, (2) cannot draft beneficiaries, (3) cannot deport beneficiaries.
C) (1) cannot acknowledge the grant, (2) cannot recognize beneficiaries, (3) cannot enforce articles.
D) There are no trustee disabilities.

Q80. (Short Answer) Explain in your own words why the trustee is bound by the grantor's law rather than its own domestic preferences. (2–3 sentences.)

Q81. (Short Answer) What is the legal effect of a trustee's breach of the Constitutional Fold's disabilities — for example, imposing a racial classification on a beneficiary? (2–3 sentences.)

Q82. (Doctrinal Reasoning) A senior administrative official argues: 'The Constitutional Fold doctrine is a creative reading by Drew Ali; it has no basis in classical law. The U.S. Constitution operates as the supreme law of the United States, and the 1786 treaty operates within that constitutional framework, not above it.' Refute this argument. (3–5 sentences.)

SUBSECTION E — INTER-CLASS BENEFICIARY PRIORITY

Questions 83–86. Tests the affiant's grasp of the two-class beneficiary structure: primary beneficiaries (Moors / subjects of the Empire, with original equitable interest, identified by the ʾalāma under Chapter 4) vs. derivative debtor beneficiaries (U.S. citizens, with derivative interest through the trustee's administration). Primary class holds priority; the trustee's 229-year inversion of this priority is itself a fiduciary breach under Volume K Ch. 11 misidentification doctrine.

Q83. (Multiple Choice) The 1786 Mālikī Sharia Hiba establishes a beneficiary structure with:

A) A single undifferentiated beneficiary class.

B) Two beneficiary classes — primary beneficiaries (Moors / subjects of the Empire) and derivative debtor beneficiaries (U.S. citizens) — with the primary class holding priority.

C) Three equal beneficiary classes.

D) No beneficiaries; the grant is a treaty between sovereigns.

Q84. (Multiple Choice) The affiant, as a Moor and subject of the Empire of Morocco, claims:

A) Membership in the derivative debtor-beneficiary class with U.S. citizens.

B) Membership in the primary beneficiary class, with original equitable interest in the trust corpus, holding priority over any derivative claim.

C) Membership in the trustee class.

D) No beneficiary status under the grant.

Q85. (Doctrinal Reasoning) A federal officer classifies the affiant as a U.S. citizen and asserts that any rights the affiant claims under the 1786/1836 instrument flow through the U.S. citizenship classification. Refute this position. (3–5 sentences.)

Q86. (Doctrinal Reasoning) The U.S. has continuously administered grant protections to U.S. citizens for 229 years (as confirmed by Admission 10, the 1952 ICJ case Rights of Nationals of the United States in Morocco, where the U.S. argued affirmatively that derivative-beneficiary rights remained operative) while denying primary-beneficiary status to Moors. Explain why this pattern is itself a fiduciary breach. (3–5 sentences.)

SUBSECTION F — THE OFFICE CORRIDOR (CHAPTERS 20-24)

Questions 86A–86H. Tests the affiant's grasp of the office corridor (Chapters 20–24): the tribunal-competence allocation of record (Table B-1), the mirror rule, the honorary debt, the office-function reading, the war bar, and the abolition objection.

Q86A. (Multiple Choice) Under the tribunal-competence allocation of record (Table B-1), a dispute in the Empire between two citizens of the United States — or persons under their protection — with each other is decided by:

A) The Empire's Sacred-Law tribunal, judgment without increase or decrease.

B) The United States consul — 'the Consul shall decide between the Parties' — the Empire's officials granting aid or assistance on his requisition to enforce the decision.

C) A mixed commission of the two nations, sitting together.

D) The courts of the United States, applying federal common law.

Q86B. (Multiple Choice) The commission of record (art. 2.2) seats the tribunal's jurisdiction in the domestic venue of the Empire of Morocco — Moor against Moor, and the heirs of the land. The domestic character of that venue is:

A) Attributed to the treaty article's own text, which uses the word 'domestic.'

B) A characterization of record — the domestic character is established by the commission and the corridor doctrine; it is not attributed to the treaty article's own wording.

C) A concession that the venue is foreign to the Empire.

D) A waiver of the heirs' standing.

Q86C. (Multiple Choice) Articles 20 and 21 form a mirror. Under Chapter 20 the consul requires aid or assistance from the Empire's government to enforce his decisions; under Chapter 21 the consul is present and assists at the trial. The mirror rule of record is:

A) Assistance shares in the decision it supports.

B) Assistance runs toward the forum that holds the decision; assistance is an arm, never a share in the decision.

C) The assisting forum may override on appeal.

D) Assistance is owed only when requested in writing.

Q86D. (Multiple Choice) When the tribunal's decisions, orders, or judgments require the United States government's assistance in carrying them out, that assistance is, under the record:

A) A petition for recognition, which the United States may grant or deny.

B) An honorary debt — demanded, not begged — its validity under Article VI, clause 1, and its enforcement under Amendment XIV, section 4 questioned by no one.

C) A gratuitous favor dependent on policy.

D) A matter for the consul's discretion.

Q86E. (Short Answer) Chapter 22 provides that if no consul is present, the decedent's effects pass to 'some Person worthy of Trust' until the rightful claimant appears; the 1786 Arabic frames the succession as man yaqūmu maqāmahu — 'whoever stands in his place.' Explain what this formula establishes about the office. (2–3 sentences.)

Q86F. (Multiple Choice) The 1786 Arabic names the consul al-qunṣul — a loanword — and contains no separate word for 'office.' The office-function reading of record rests on:

A) A later English gloss inserted in 1836.

B) The Arabic's own syntax — yafṣilu bayna al-farīqayn ('he decides between the two parties'), the implied subject being the office acting, and man yaqūmu maqāmahu, succession following the place.

C) Modern diplomatic usage.
D) The treaty of a different power.

Q86G. (Doctrinal Reasoning) An opponent argues that a breach by the trustee suspends the corridor's protections and frees the aggrieved to self-help. Refute using Chapter 24. (3–5 sentences.)

Q86H. (Doctrinal Reasoning) An opponent argues that the corridor lapsed: the later twentieth-century arrangements abolished the foreign consular courts on Moroccan soil, and with them, on his theory, everything built on Chapters 20–21. Refute. (3–5 sentences.)

SECTION IV

Chapter 4 ʿAlāma and Operational Recognition

Q87. (Multiple Choice) The Arabic phrase ''alāma baynanā naʿrifu bihā' translates as:
A) 'A treaty between us by which we trade.'
B) 'A mark between us by which we know each other.'
C) 'A border between us we shall not cross.'
D) 'An oath between us we swear together.'

Q88. (Multiple Choice) The ʿalāma is established by:
A) U.S. domestic law.
B) The grant itself, in Chapter 4.
C) Modern Moorish-American organizations.
D) International treaty bodies.

Q89. (Multiple Choice) The function of the ʿalāma is to:
A) Register beneficiaries with the U.S. government.
B) Provide the operative mark by which beneficiaries are recognized under the grant.
C) Replace beneficiary status with administrative status.
D) Restrict beneficiary status to certain categories.

Q90. (Multiple Choice) Why does the ʿalāma not require third-party validation to operate? itself.
A) Because the donor's act creates the recognition framework, and recognition flows from the grant
B) Because U.S. courts have ruled that no validation is required.
C) Because international treaties exempt it.
D) Because beneficiaries can self-validate without any framework.

Q91. (Short Answer) Define the ʿalāma in operational terms — what is it, what does it do, and where does it come from? (2–3 sentences.)

Q92. (Short Answer) How does the ʿalāma differ from a domestic registration system? (2–3 sentences.)

Q93. (Doctrinal Reasoning) A government official says: 'Your appellation is just a name change. It has no legal effect. Until you register it under U.S. domestic law, you are not recognized.' Apply the ʿalāma doctrine to refute this. (3–5 sentences.)

Q94. (Multiple Choice) The land-based appellations established as ʿalāma markers are:
A) Smith, Jones, Brown.
B) El, Al, Bey, Dey, Ali.
C) Doctor, Professor, Reverend.
D) First, Second, Third.

Q95. (Multiple Choice) The maritime ʿalāma marker is:
A) A red flag.
B) A blue pendant.

C) A green banner.
D) A white sail.

Q96. (Multiple Choice) An appellation suffix (e.g., '-El') is doctrinally significant because:
A) It is decorative and has no legal function.
B) It is the operative ʿalāma marker establishing the bearer as a beneficiary under the grant.
C) It indicates U.S. domestic citizenship.
D) It identifies the bearer as a private contract party.

Q97. (Multiple Choice) When an affiant presents the Nationality Instrument with their corrected free national name, they are: framework.
A) Requesting a name change from the U.S. government.
B) Activating the Chapter 4 ʿalāma mechanism — operating under the grant's own recognition
C) Filing a domestic legal pleading.
D) Declaring U.S. citizenship.

Q98. (Short Answer) Why are the five land appellations (El, Al, Bey, Dey, Ali) doctrinally distinct from any other surnames or family names? (2–3 sentences.)

Q99. (Short Answer) Identify the maritime ʿalāma marker and explain its operational significance. (2 sentences.)

Q100. (Doctrinal Reasoning) An immigration officer says: 'The appellations El, Al, Bey, Dey, and Ali are not recognized in our system. As far as I am concerned, you are filing under a name not on your government ID.' Apply the ʿalāma doctrine to compose your internal reasoning. (3–5 sentences.)

Q101. (Multiple Choice) The Nationality Instrument calls three witnesses to attest the declaration:
A) Three federal officials.
B) Ursa Major (the Great Mother), Polaris (the North Star/North Gate), and the Earth (Terra Mater).
C) Three sitting judges.
D) Three notaries public.

Q102. (Multiple Choice) The scriptural foundation for calling celestial and terrestrial witnesses is found in:
A) Genesis 1.
B) Deuteronomy 30:19 and 31:28.
C) Revelation 21.
D) Psalm 19.

Q103. (Multiple Choice) The Nationality Instrument is self-authenticating because: instrument; no external validation is required.
A) Notarization is impossible to obtain.
B) The grant's own authority (Chapter 4 ʿalāma) plus the Supremacy Clause are sufficient to perfect the

C) U.S. courts have waived notarization for these instruments.
D) The affiant cannot afford notarization.

Q104. (Multiple Choice) The witness attestation by Ursa Major, Polaris, and Earth:
A) Expires after a fixed period.
B) Can be revoked by U.S. domestic action.
C) Does not expire and is not subject to any earthly jurisdiction.
D) Requires renewal every ten years.

Q105. (Short Answer) Identify the three witnesses called in the Nationality Instrument and the role each plays. (3 sentences.)

Q106. (Short Answer) Explain why the Nationality Instrument does not require notarization. (2–3 sentences.)

Q107. (Doctrinal Reasoning) A clerk refuses to file the Nationality Instrument because it is not notarized. Apply the self-authentication doctrine to compose your response. (3–5 sentences.)

Q108. (Multiple Choice) The reciprocal notice principle holds that:
A) Notice must be given separately to every officer.
B) Notice to an agent is notice to the principal, and notice to the principal is notice to the agent.
C) Notice operates only in one direction.
D) Notice expires if not acknowledged within thirty days.

Q109. (Short Answer) Explain the operational consequence of the reciprocal notice principle for service of the Nationality Instrument. (2–3 sentences.)

Q110. (Short Answer) When presenting the Nationality Instrument in a real-world encounter (e.g., to an officer, clerk, or judge), what posture does Lock 3 require the affiant to maintain? (2–3 sentences.)

Q111. (Doctrinal Reasoning) Compose the affiant's complete operational approach for an encounter with a federal officer who challenges the Nationality Instrument. Integrate Lock 3, the ʿalāma mechanism, the self-authentication doctrine, and the reciprocal notice principle. (4–6 sentences.)

SUBSECTION E — THE PREROGATIVE OF HONORS (FRANCHISE OF RECOGNITION)

Questions 111A–111C. Tests the affiant's grasp of the honors branch of the prerogative and the honorifics of record as ʿalāma recognition marks.

Q111A. (Multiple Choice) The prerogative of honors — the conferral of honorifics (el, al, bey, dey, Ali) upon the honoree class — is exercised under the instrument as:
A) A municipal courtesy administered by the grantee.
B) A branch of the sovereign prerogative carried by the franchise of recognition under Chapter 4 (ʿAlāma).
C) A title of nobility conferred by the United States.

D) A diplomatic rank requiring grantee confirmation.

Q111B. (Multiple Choice) The honorifics of record (el, al, bey, dey, Ali) borne by the honoree class are:

A) ʻAlāma — marks of recognition conferred under the Chapter 4 prerogative.
B) Hereditary peerages.
C) Municipal offices of the grantee.
D) Courtesy styles without instrument significance.

Q111C. (Short Answer) Explain how the Nationality Declaration accommodates the honorific of record at execution. (2–4 sentences.)

SECTION V

Rules of Construction — Twelve Maxims Adverse to the Grantee

Section V Overview. The construction of the 1786 Mālikī Sharia Hiba is governed by twelve interlocking rules of construction, drawn from the period authorities (Bynkershoek, Grotius, Vattel, Blackstone, Coke), classical Mālikī fiqh, and the Architecture of Peace series (Volume K). Every rule operates in the same direction: adverse to the grantee. The maxims operate independently (each is sufficient standing alone) and cumulatively (they reinforce each other where they overlap). Section V tests the affiant's grasp of each maxim individually, the relationships among them, and the capacity to deploy the apparatus operationally against adverse U.S. arguments.

Q112. (Multiple Choice) Bynkershoek's interpretatio stricta (Quaestionum Juris Publici, Book II, Ch. 7, 1737) holds that:

A) A sovereign grant is construed most strongly against the grantor.
B) A sovereign grant is construed most strongly against the grantee.
C) A sovereign grant is construed neutrally between the parties.
D) A sovereign grant is construed under contract-law principles.

Q113. (Multiple Choice) Bynkershoek's anti-self-interpretation rule (Quaestionum Juris Publici, Book II, Ch. 10) holds that:

A) A party to a grant may serve as the sole interpreter of its own obligations.
B) No party to a grant may serve as the sole interpreter of its own obligations.
C) Only the grantor may interpret the grant.
D) Interpretation requires unanimous consent of both parties.

Q114. (Multiple Choice) Grotius' common-usage rule (De Jure Belli ac Pacis, Book II, Ch. 16, 1625) provides that the meaning of grant words is sought in:

A) Modern English usage of the words.
B) Their common and usual signification at the time of execution.
C) Whatever meaning the grantee chooses.
D) The drafter's private intent.

Q115. (Multiple Choice) Vattel's effective-interpretation rule (Le Droit des gens, Book II, Ch. 17, 1758) holds that:

A) Any clause in the grant may be rendered surplus or meaningless if convenient.
B) No interpretation may render any clause meaningless or defeat the grant's purpose.
C) Only the most recent edition of the grant counts.
D) The grantee may select which clauses are operative.

Q116. (Multiple Choice) The intertemporal rule (Grotius II.16; Island of Palmas, 1928) holds that a legal act is judged by:

A) Subsequently developed law.
B) The law in force at the time of its execution.
C) Whatever law the more powerful party prefers.
D) Modern principles applied retroactively.

Q117. (Multiple Choice) Nullum tempus occurrit regi (Blackstone, Commentaries Book I, Ch. 7; Coke, Institutes Part I §90b) means:

A) Time runs against the sovereign at the standard limitations period.

B) No time runs against the sovereign; rights are not lost by laches, limitations, or non-assertion.

C) The sovereign must enforce rights within twenty years.

D) Sovereign rights expire after a generation.

Q118. (Multiple Choice) Under Blackstone's enrollment principle (Commentaries Book II, Ch. 20), the enrolled record of the grant is:

A) Temporary evidence subject to periodic re-enrollment.

B) Perpetual testimony of the grant's existence and terms, independent of the parties' possession of copies.

C) Valid only while both parties retain physical copies.

D) Defeasible by administrative action of the grantee.

Q119. (Multiple Choice) Volume K's exhaustive termination list (Ch. 8) identifies a closed list of events that do NOT terminate a sovereign grant. Which of the following is on that list?

A) A formal renunciation by the grantor with the donee class's consent.

B) Passage of time, non-performance by grantee, non-performance by grantor, domestic legislation by grantee, succession crises, war between grantor and grantee, unilateral renunciation by grantor.

C) Termination notice given under a recordation-cycle clause.

D) A finding by the grantee's courts that the grant is no longer convenient.

Q120. (Short Answer) Name the Ten Fiduciary Duties as enumerated in Volume K Ch. 10. (2-3 sentences listing all ten.)

Q121. (Multiple Choice) The spoliation maxim — omnia praesumuntur contra spoliatorem (The Pizarro, 15 U.S. 227 (1817); Volume K Ch. 16) — operates such that:

A) Presumptions favor the party that fails to produce documents within its custody.

B) All presumptions run against the despoiler — the party that fails to produce primary documents within its custody.

C) The party producing more documents wins.

D) Document custody is irrelevant to evidentiary presumptions.

Q122. (Multiple Choice) The Mālikī parallel al-amīn lā yuṣaddaq fī mā yuṭālab bihi illā bi-bayyina (classical Mālikī fiqh) holds that:

A) The trustee is believed in whatever he asserts.

B) The trustee is not believed in what is demanded of him except by clear evidence.

C) The trustee may interpret his obligations as he sees fit.

D) The trustee owes no production duty to the beneficiary.

Q123. (Doctrinal Reasoning) Volume K Ch. 11's misidentification doctrine holds that where a trust exists, the fiduciary standard governs and the contractual standard is irrelevant. A federal attorney argues: 'The 1786 Treaty is a contract between two sovereign powers and must be construed under contract-law principles, including offer, acceptance, consideration, breach, and damages.' Refute this argument. (4-6 sentences.)

SECTION III CAPSTONE — Q-III-C1: THE RECORD/MODEL BOUNDARY

Retrofit Edition v3.1 · added 2026-08-23 · administered with Section III · scored within the Section III minimum (75%)

Administration. This capstone is an addition to the 134-question battery; existing question numbering is unchanged. It tests the boundary that Section III presupposes.

Stem. The Examination and the Declaration describe the United States as "trustee" and the Moorish nation as "beneficiary" of the 1786 hiba. A hostile reader objects: "Your trust language invites chancery jurisdiction and equitable discretion; and your venue claim denies the authority of the domestic courts — the signature of the sovereign-citizen genre." Answer by stating (a) what the trust/beneficiary framing is and is not; (b) the law and venue the hiba itself establishes; and (c) why neither assertion is an exemption claim.

END OF EXAMINATION